

**IN THE MAGISTRATES COURT FOR THE DISTRICT OF PHALABORWA HELD AT
PHALABORWA**

CASE NUMBER: 752/2016

In the matter of:

HUIBRECHT HELENA BEKKER

APPLICANT / DEBT COUNSELLOR

AND

**MOHALE ERICK MOJELA
(ID NR: 7205295319089)**

**FIRST RESPONDENT
(CONSUMER)**

**OUMA EMELY MOJELA
(ID NR: 7703290474081)**

**SECOND RESPONDENT
(CONSUMER)**

ABSA BANK LTD

THIRD RESPONDENT

THE FOSCHINI GROUP (PTY) LTD

FOURTH RESPONDENT

CAPITEC BANK LTD

FIFTH RESPONDENT

PEPKOR RETAIL LIMITED

SIXTH RESPONDENT

TRUWORTHS LTD

SEVENTH RESPONDENT

FNB A DIVISION OF FIRST RAND BANK LIMITED

EIGHTH RESPONDENT

AFRICAN BANK LTD

NINTH RESPONDENT

COURT ORDER

After having read the papers and having considered the matter the following order is made:

1. That the Applicant's/Debt Counsellor is granted leave in terms of Section 86 of the National Credit Act, 2005 to bring this application;
2. That the Applicant/Debt Counsellor's finding is confirmed, and the First and Second Respondents (Consumers) are declared to be over-indebted, as set out in Section 79 of the National Credit Act, 2005; and
3. That the First and Second Respondent's (Consumers) payment obligations are rearranged in terms of Sections 86 and 87 of the National Credit Act, 2005 as hereunder:

2016 -10- 06

TWO

**Payment Plan Reference Number:
7205295319089/005**

Creditor	Reference	Annual Interest	Proposed Monthly Installment	Outstanding Balance	Estimated period in Months
ABSA BANK LTD (CREDIT CARD)	5471200273090014	20.00	197.39	5045.78	22
TOTAL SPORTS (Pty) Ltd	0016110000796701996	26.00	95.00	3046.87	32

CAPITEC BANK LTD	1405569946	32.20	1467.00	134320.88	84
FOSCHINI (Pty) (Ltd)	0010010001034698246	26.00	176.00	5959.68	36
ACKERMANS (Pty) Ltd	10201320070021189269	24.85	103.00	3184.47	31
TRUWORTHS Ltd	10100353607637	24.85	149.00	3385.85	24
FNB LTD (HOMELoANS)	3000009780356	N/A	N/A	N/A	N/A
AFRICAN BANK LTD	5158671E002	22.00	678.00	40447.22	64
ABSA BANK LTD (CHEQUE ACCOUNT)	40643080040	10.25	102.00	1799.04	16
FNB LTD (PERSONAL LoANS)	4000020934699	0.00	1664.00	18234.43	15

4. The First and Second Respondents (Consumers) are ordered to pay the amount of R 5096.16 to a registered payment distribution agency for purposes of distribution to the credit providers in terms of the restructuring proposal.
5. The payment structure is subject to the cascading effect: When the balance owing on a specific credit agreement has been settled (paid up), the amount thus becoming available is to be distributed until the balances owing on all the remaining credit agreements included in this order have been settled.
6. The Eighth Respondents Account 3000009780356 to be excluded from the Debt Review Application.
7. The Eighth Respondents Acceptance Letters to be made an Order of Court, hereto marked as "CO1.1 - CO1.3"
- 8.

DATED at PHALABORWA on this 06 day of October 2016

MAGISTRATE

